Volume VI

May 1988

Number # fifty-five

Villager Tower



Lawsuit Discrimination



Former councilman inquired on May 2nd about letter received to appear at the scheduled trial of May 11th for the discrimination lawsuit. Former councilmen Swanson and Low were to testify on behalf of hte city. Present city council expressed objectio to lack of attorney's keeping them informed. The meeting was recessed in order for the City Administrator to contact Mr. Nicklaus to appear before the council. Mr. Nicklaus wouldn't be available until ten PM. Mr. Nicklaus was not able to make the meeting on May second.

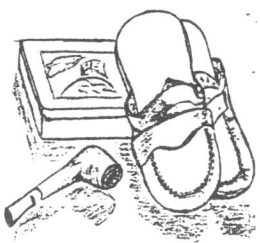
Subpoenas were served to former councilmembers to appear in court. The trial was scheduled to begin at nine AM Wednesday, May 11th in Carver County. Instead the trial was moved to Scott County Courthouse for courtroom space and finally began at approximately three that afternoon. The judge joked that the case may go down in history as being moved so much.

Mr. James Henry, former applicant in 1984 for the City of Carver City Administrator position is suing the Cities of Carver and Young American and the two mayors, individually as discriminating against him during the search for a city administrator.

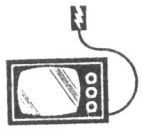
Gilfilan Avenue



Property owner appeared before the council on May second to discuss conditions pertaining to Gilfillan Avenue. The 1976 agreement pertaining to maintenance of the street was then proposed. The plan was for a trailer park. This plan was never followed through. In the property owner's opinion the agreement was not any longer applicable since a home had been built instead. Further discussion was held on maintenance of the road. Alternatives were discussed. The issue was not resolved.



Cable T.V.



United Cable representative, Mr. Steve Stolen was present at the May 2nd meeting. He discussed installation of a system within Carver. Consideration of an ordinance was requested. If an ordinance were acted upon soon, It was thought that a system could be operational by winter. Serviceability was discussed. The mayor requested a map showing serviceable areas. A map was to be ready for review by May ninth. After an ordinance was adopted, construction would take forty to sixty days. Motion was made and carried with all ayes to schedule a Public Hearing at the June 6th meeting for cable tv.

Variance Request

Planning Commission held a Public Hearing on a variance request to replace an existing trailer home with newer home. Zoning ordinance requirements were not met. Councilman Wendland noted that a similar variance had been granted previously. Upgrading was discussed. Citizen objected to the placement of another trailer on the lot. He commented that a trend had been set to replace trailers on this street [Sixth Stree] with more conventional homes. Motion was made and carried with all ayes to table action until the next regular meeting.

Sixth Street



On May second, the council was told that Sixth Street would be worked on that week. Frey requested permission to reroute traffic. Motion was made and carried with all ayes granting Frey control of traffic when Sixth Street is closed for repairs. It was recommended that a "Stop" sign be placed at the bus garage.

Frey told the council that Sixth Street had always been of a nine ton design, but was replaced as a five ton street. Council directed the City Administrator to contact the engineers to question them about this matter. Hydro Engineering offered explanation that Muellers had probably built the road up. Mayor stated that talking with Muellers, maybe an agreement could be reached.

Carver-on-the-Minnesota

The Carver-On-The-Minnesota met on May 19th in the Presbyterian Church.

Fundraisers, catagorizing, documenting and inventory of possessions were discussed.

Sources of revenue, ways to get help, repair of the church were all discussed.

Request was made for the use of the church. Discussion was held and agreement was reached to allow it use for a meeting. The electricity would be turned back on and contact was to be made with NSP.



Liquor Licenses

Review of liquor licenses on May 2nd was made of fees in neighboring cities. Consensus of the council was not to change fees.

Motions were made and carried with all ayes to approve renewals of liquor licenses for Harvey's Bar, DogHouse Bar and Chips' Tavern.



Steamboat Day Committee



On May second, City Administrator reported that the SteamBoat Days Committee had met. Chips Leivermann was elected Chairman and Ken Frey was elected co-chair. Their next meeting was scheduled for May 23rd at 7:30 PM. Chips Leivermann, Harlan Thaemert or the City Clerk are authorized to sign checks for the committee.

Lioness News

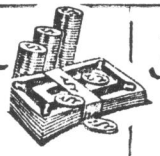
Installation of new officers will be at the Lionesses June meeting.

Harley and Chris Thon have completed an application for the Lion's Youth Exchange Program. The youth resides in Sweden.

Lioness Associate Jean Amrhein attended the 5M2 Multiple Convention in Duluth over the weekend of May 20th.

At the June meeting, the Lioness will enjoy a year end picnic. Regular monthly meetings will resume in September on the second Monday of the month. Anyone interested in joining are welcome to attend meetings.

Sewer and Water Connection Ordinance



The sewer and water connection ordinance was discussed on May second. The City Administrator presented drafted ordinance, highlighting different issues.

Councilman Hanson suggested that costs be kept competitive, in order to attract new residents. Connection charge should be set at $ 700 per unit, but property owners should be responsible for all expenses to bring water and sewer to their structure. Comparisons to other cities were discussed and reviewed. Motion was made and carried with all ayes to table the ordinance until scheduled special meeting be held.



Town Meeting

On May 9th, City Administrator Spiotta called the Town Meeting to order. Carver County Commissioner, Tracy Swanson was not able to attend as scheduled. The City Administrator gave a short introduction to the meeting. Personnel and city officials were introduced.

Dan McLeod, Minnesota Community Improvement Program [MCIP] explained communication problems and suggested that one member from each local organization work out problems and coordinate the community as a whole. He further stated that there were MCIP funds available to match donated time. Objectives need to be established and documented. Community pride is important.

Thanks were extended for various projects.

Cititzens were told how the present Steam-Boat Committee was compiled, meeting and invitations extended.

Residents were asked to write down three ideas of what objective they'd like to see accomplished within the next five years. Mr McLeod divided the individuals into five groups, requesting three ideas for the future of Carver.

Ideas consisted of reforestation, youth program, park development, main street, light industrial development, zoning enforcement, encouragement of the Carver-On-The-Minnesota, improve Village Hall facade, vacant lot improvement, convenience store, bank and other ideas.

Mr McLeod suggested that three committees be developed for projects. Volunteers were requested for a reforestation committee, main street project committee and a historic preservation committee. Carver-On-The-Minnesota was already established as a historical committee. New members were welcome to attend their next meeting.

Mr McLeod further stated that a MCIP group should be established and the seaparate committeees report to the MCIP group. Questions could be directed towards the City Administrator.

Munitech, Inc.



Council was told on May second that only one bid had been received for installation of polyphosphate treatment to the water system. This treatment would keep the iron and manganese suspended longer. Also, it would keep the iron from encrusting on the pipes. Motion was made and carried with all ayes to table the issue until the June meeting.

Munitech suggested that the cable company be held responsible for any damages done to utility facilities in the contents of a contract The city should contact an attorney whose expertise is with cable tv in case of such a problem.

Representative from Munitechn told the council that the amount of water pumped versus waste water treatment has a large difference ratio, even with allowing for the recently repaired water leak. They will monitor this and keep the council informed.

City Administrator had met with Mr. John Stewart [Maier Stewart] and Ms. Carolyn Drude [Ehlers and Associates] to attempt to reach totals for the construction costs for the sewer and water projects. This figure was still not determined.

Motion was made and carried wtih roll call vote of all ayes approving resolution deferring three properties from hooking up to the municipal utilities until necessary.

The water main leak on County Road # 40 was repaired. The leak was caused by improper connection of two sections.

Hydro Engineering will be in the City of Carver to finish up the project. Request was made that the city forward a letter stating that Hydro Engineering shall maintain the grass for only thirty days.

City Council News

Park and Recreation Board



The Park and Recreation Board met on April 27th. Request was made to add two members to the board. Motion was made and carried with all ayes to schedule a Public Hearing to amend the ordinance, increasing board members. Mayor Myers requested that Public Hearing notices be posted. Interested individuals should contact the city.

Park and Recreation Board members recommended that the ballfields in Riverside park be kept in playing condition even after the new park is useable. Lions have agreed to monies for Rich Olson to prepare the fields at the new park. Lions have also donated playground equipment at the Lion's Park.

Mr. Greg Finkel, Black Sox Manager asked on May 2nd about ballpark maintenance. He was told that there is park maintenance budget and the city mows the fields. The mayor stated that improvements should be made by Black Sox.

Council consensus was that the Park and Recreation Board should coordinate scheduling of the ballfields. Park and Recreation Board meeting was rescheduled. There was not any date given for the new meeting night.

Mr. Finkel told the council that the Black Sox were pushing for a completion date of the park complex in order for younger players to play on the fields and maintain Carver's baseball tradition.

Temporary license for games was requested for 3.2. Motion was made and carried with all ayes approving license. City clerk aksed whether or not the council could approve licences for six to eight games at once. Motion was made and carried with all ayes approving temporary licenses for home games of the season.

In Case of an Emergency

Water and Sewer Emergencies:

Munitech has 24 Hours a day answering:

472-2718

Or Call:

Pat - 448-5353

Or:

Ken - 448-5353

Sponsors

Carver House Antiques

Mn. Valley Coop

Skidder Repair

Dave's Excavation

Munitech, Inc.

Building Permit



Request was made for a building permit on May second for an addition to an existing garage. Councilman Hanson questioned whether or not the road maintenance issue should be resolved first. Councilman Briggs stated that the building request should be handled separately. Motion was made and carried with all ayes approving the building permit.

Dogs



Council reviewed a letter on May second from the city attorney regarding an ordinance adopted by State Legislature on dangerous dogs. This letter also addressed concerns of cities and citizens. Dog problems were discussed. Frey does not want to be responsible for catching dogs. Councilman Briggs expressed concern over being too restrictive, but also citizen safety. Agreement was voiced that something had to be done. The issue would be discussed at the Town Meeting scheduled for May ninth. The Sheriff's Department should be contacted regarding dogs running loose.

Board of Review



The council acting as the Board of Review on May 2nd considered requests from the April 11th meeting. Previous motion had been tabled. Discussion was held regarding the Carver-on-the-Minnesota vacant lot request to lower valuation. Councilman Hanson stated that he'd like to see the park progressing and the valuation lowered. City Administrator commented that the Park and Recreation Board supported the Carver-on-the-Minnesota, but wished to review park plans with them. The motion was made and carried with all ayes to change valuation and lower.

Parcel of land within the floodway was discussed. Request was also made to lower valuation. Land is zoned park. Assessor recommended lowering valuation. Motion was made and carried with all ayes lowering valuation.

Another request submitted asking for reduction of valuation because business is located in flood plain was discussed. Council documented comments made, but still contended that the business owner should go directly to the state.

Motion was made and carried with all ayes closing the Board of Review.

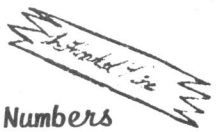


Carver Fire Department Highlights



Submitted by the Carver Fire Department

Notice

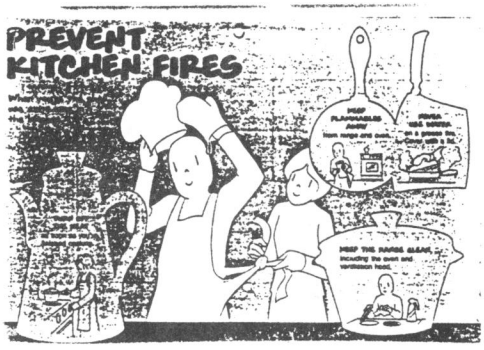


House Numbers

Fire Chief Riesgraf would like to remind you to please ensure that your house numbers are located where they can be visibly seen by the Fire Department personnel and/or ambulance service, in the case of an emergency. If you have an emergency, your house number is not up or visible, it could becoma a matter of life and death. **Remember,** *not everyone might know who or where you are. For your sake and their ability to help you, be sure yoru numbers are there for them.* **Thanks!**

June Highlights

June 2nd	-	Drill Night 6:30 PM
June 14th	-	Flag Day
June 19th	-	**Father's Day**
June 20th	-	Drill Night 6:30 PM
June 30th	-	Meeting Night 8:00 PM



Trivia Questions



1) American's favorite fresh fruit is?
2) What was the first animal domesticated by man?
3) What is Doc Severinsen's first name?
4) What is the leading vegetable consumed in the U.S.?
5) What animal has the longest pregnancy?
6) What is the most common musical instrument people know how to play?
7) What is the most common diseases today?
8) What is the most heavily consumed food?
9) Of all the famous generals in the US history, only one ranked first in his graduating class from West Point. Who was he?
10) What is the most common given name in the world?

Tentative Agenda



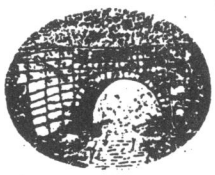
Submitted by the City of Carver

June 6, 1988 - Monday Evening
Council Meeting - 6:30 PM

1) Call to Order
2) Approve Minutes
3) Approve Claims
4) Petitions from Residents
5) 7:00 PM - Public Hearing
   Cable TV
6) 7:30 PM - Public Hearing
   Park and Recreation Board
   Ordinance Amendment
7) CDBG Update
8) Munitech, Inc.
9) George Gatz - Variance Request
10) Carver Historic Preservation Commission
11) Public Works Update
12) City Administrator Report
13) Other Business
14) Adjourn

Staff

Ricki Yvonne Schultz
Lucie Hartley
John W. Schultz and Company
Annette - Kimberly - Richard
Joycelyn L. Reus
Cheryl Joinn



CDBG

HOME IMPROVEMENT ASSISTANCE IS STILL AVAILABLE

The Carver County HRA is still taking applications for the Carver Home Improvement Program. Homeowners in the core city are eligible to apply for assistance to finance necessary home and energy conservation improvements. Depending on household size and income, homeowners may be able to qualify for a deferred payment loan. These loans require no repayment of principal or interest if the recipient owns and occupies the home for 10 years. If the home is sold or the owner moves out during the 10 year period, only the principal amount of the loan has to be repaid - no interest is charged.

You can stop by the HRA office at 308 N. Broadway or call 448-7715 for more information.

GET A FREE HOME ENERGY CHECK-UP

If you are a customer of NSP or Minnegasco you can qualify for a free Home Energy Check-Up visit. The Check-Up includes a residential energy audit of your home and gives you advice on how you can save energy and money through energy conservation improvements. In addition, you will receive up to $30 worth of energy supplies so that you can begin making energy saving improvements immediately. Depending on the improvements your house needs, you may receive a caulk gun and caulk, a hot water heater insulation jacket, window treatment kits, a door sweep or a number of other energy saving materials.

The Check-Up program is provided by the Carver County HRA. The Check-Up visit will be performed by a State certified energy auditor.

To get a Check-Up visit for your house call the HRA at 448-7715.

Trivia Answers



1) Banana
2) Dog
3) Carl
4) Potatoes
5) Elephant
6) Piano
7) Tooth Decay
8) Milk
9) Douglas MacArthur
10) Mohammad

Disclaimer

The preliminary unapproved minutes from the City of Carver's council meetings were referenced to compose the **Villager Tower.**

Miscellaneous



On May 2nd, the council discussed several bills submitted that they concluded shold not be paid at that time.

Robin Kashuba has been requested to return to the Planning Commission with proposed conditional use permit request for Bed and Breakfast idea.

Motion was made and carried with all ayes approving resolution thanking Carver Lion's for donation of equipment at Lion's Park.

Streets had been swept in April. The job was done in half the time as compared to last year.

City staff was directed to follow up on sidewalk replacement letters sent last fall.

Lion's shelter at the Lion's Park was oompleted. Frey asked if a water meter should be installed since it was considered to be a good diea to monitor city's water use.

Frey received two quotes on repairing the Fire Station roof. Both quotes were similar. Motion was made and carred with three ayes and two nays granting the contract to repair the roof to Haas and Haas, inc. Discussion was held directing that future quotes request specificaitons be written down for contractors to bid on.

Bids for work on Fourth Street and Mt Hope Road were discussed. Two bids were received. Mayor commented that requirements should be written and submitted to at least three contractors. Consensus was to reject bids and draft instructions and requirements.

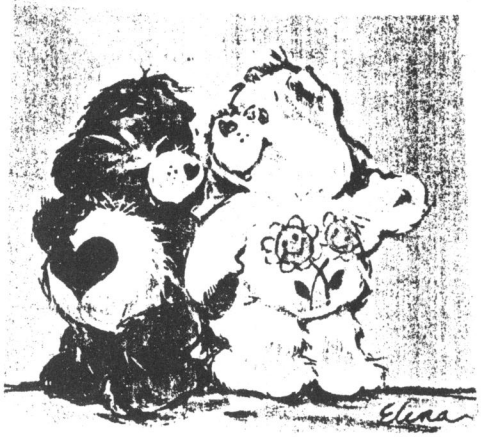
Ag lime for the ball fields should come out of the budget, if monies were available.

Mt Hope Road has been seeded. Request was made to remove the tree roots.

City Administrator told the council that the CDBG update concerned the fact that minimal inquireies were made to the HRA regarding assessment abatement issue.

Motion was made and carried with roll call vote of all ayes approving resolution authorizing City Clerk/Treasurer, Patricia Plekkenpol to invest city funds.

Motion was made and carried approving proclamation of May 1st through May 7th as Cities Week in Carver adn to hold a Town Meeting on May 9th, 1988.



Friendship ♥ and ♥ Tenderheart ♥ Bears ♥ are planning ♥ to ♥ wish ♥ all ♥ dad's ♥ a ♥ Happy Father's Day ♥♥♥♥

Tenderheart ♥ Bear ♥ extends ♥ the ♥ Best Father's ♥ Day ♥ for ♥ especially ♥ my ♥ dad, 'cuz' ♥ he's ♥ so ♥ special ♥♥♥

Happy ♥ Father's ♥ Day, ♥ Daddy ♥♥♥♥♥♥♥♥♥♥